

Listing Agreement - Commercial

Landlord Designated Representation Agreement

Authority to Offer for Sub-Lease



EXCLUSIVE

This is a **Multiple Listing Service® Agreement**

(Sub-Landlord's Initials)

OR

Exclusive Listing Agreement

(Sub-Landlord's Initials)

BETWEEN:

BROKERAGE:

(the "Brokerage") Tel. No.

SUB-LANDLORD:

(the "Sub-Landlord")

DESIGNATED REPRESENTATIVE(S):

(Name of Salesperson/Broker/Broker of Record)

The Designated Representative will be providing services and representation to the Sub-Landlord and the Brokerage provides services but not representation.

In consideration of the Listing Brokerage listing **for sub-lease** the premises known as

(the "Premises")

which Premises form the whole or part of the real property municipally known as

(the "Property")

the Sub-Landlord hereby gives the Listing Brokerage the **exclusive and irrevocable** right to act as the Sub-Landlord's agent,

commencing at on the day of, 20....., (a.m./p.m.)

and expiring at 11:59 p.m. on the day of, 20..... (the "Listing Period"),

{ Sub-Landlord acknowledges that the length of the Listing Period is negotiable between the Sub-Landlord and the Listing Brokerage and, if an MLS® listing, may be subject to minimum requirements of the real estate board, however, in accordance with the Trust in Real Estate Services Act, 2002 (TRESA), **the Listing Brokerage must obtain the Sub-Landlord's initials.**

(Sub-Landlord's Initials)

to offer the Premises **for sub-lease** at a rent of:

Dollars (CDN\$)

..... Dollars and upon the terms particularly set out herein, or at such other rent and/or terms acceptable to the Sub-Landlord. It is understood that the rent and/or terms set out herein are at the Sub-Landlord's personal request, after full discussion with the Listing Brokerage's representative regarding potential market rent of the Premises.

The Sub-Landlord hereby represents and warrants that the Sub-Landlord is not a party to any other listing agreement for the Premises or agreement to pay commission to any other real estate brokerage for the sub-lease of the Premises.

(Sub-Landlord's Initials)

Schedule A, attached hereto forms part of this Agreement, of which **Schedule A** sets out the details with respect to the services, confidentiality and representation of the Brokerage and Designated Representative.

1. DEFINITIONS AND INTERPRETATIONS: For the purposes of this Agreement ("Authority" or "Agreement"): "Sub-Landlord" includes sub-lessor and a "sub-tenant" includes a sub-lessee, or a prospective sub-lessee or sub-tenant. "Self-represented assistance" shall mean assistance provided to a self-represented party. A sub-lease includes any rental agreement, sub-lease or renewal of a sub-lease. The "Premises" shall be deemed to include part thereof or interest therein. A "real estate board" includes a real estate association. Commission shall be deemed to include other remuneration. This Agreement shall be read with all changes of gender or number required by the context. For purposes of this Agreement, anyone introduced to or shown the Premises shall be deemed to include any spouse, heirs, executors, administrators, successors, assigns, related corporations and affiliated corporations. Related corporations or affiliated corporations shall include any corporation where one half or a majority of the shareholders, directors or officers of the related or affiliated corporation are the same person(s) as the shareholders, directors, or officers of the corporation introduced to or shown the Premises.

2. COMMISSION: In consideration of the Listing Brokerage listing the Premises:

(i) the Sub-Landlord agrees to pay the Listing Brokerage a commission of

("total commission") for any valid offer to lease the Premises from any source whatsoever obtained during the Listing Period, as may be acceptable to the Sub-Landlord. Said commission to be payable on the earlier of occupancy by the Sub-Tenant or execution of the Sub-Lease.

(ii) the Sub-Landlord authorizes the Listing Brokerage to co-operate with any other registered real estate brokerage (co-operating brokerage) and to offer to pay the co-operating brokerage a commission of

Payment to the co-operating brokerage shall be made by the Listing Brokerage out of the total commission calculated above.

The Sub-Landlord further agrees that the total commission calculated above shall be payable to the Listing Brokerage even if there is no co-operating brokerage.

If the Sub-Landlord enters into an agreement with the Sub-Landlord's Landlord for the surrender or termination of the Sub-Landlord's lease or if the Sub-Landlord's Landlord relieves the Sub-Landlord of the Sub-Landlord's obligation to pay rent in whole or in part, the Sub-Landlord agrees to pay the

INITIALS OF LISTING BROKERAGE:

INITIALS OF SUB-LANDLORD(S):

Listing Brokerage the commission as described above in the same way as the commission would have been payable if a sub-lease would have been arranged at the rent and terms described above.

The Sub-Landlord further agrees to pay such commission as calculated above if an agreement to sub-lease is agreed to or accepted by the Sub-Landlord or anyone on the Sub-Landlord's behalf within days after the expiration of the Listing Period (**Holdover Period**), so long as such agreement is with anyone who was introduced to the Premises from any source whatsoever during the Listing Period or shown the Premises during the Listing Period. If, however, the offer to sub-lease the Premises is pursuant to a new agreement in writing to pay commission to another registered real estate brokerage, the Sub-Landlord's liability for commission shall be reduced by the amount paid by the Sub-Landlord under the new agreement.

The Sub-Landlord further agrees to pay such commission as calculated above even if the transaction contemplated by an agreement to sub-lease agreed to or accepted by the Sub-Landlord or anyone on the Sub-Landlord's behalf is not completed, if such non-completion is owing or attributable to the Sub-Landlord's default or neglect, said commission to be payable on the earlier of the date of occupancy by the sub-tenant or the execution of the sub-lease or the date set for commencement of the sub-lease or tenancy.

The Sub-Landlord acknowledges and agrees that, for any sub-lease the Listing Brokerage arranges, any provisions for a period of free rent, abatement of rent, or rent inducement will not affect the calculation of the commission or other remuneration payable hereunder. The commission or other remuneration will be calculated on the basis of rent that, but for such free rent, abatement or rent inducement, would otherwise be payable. If a sub-lease the Listing Brokerage arranges contains an option to extend or renew, the Sub-Landlord agrees to notify the Listing Brokerage of the exercising of said option and to pay the Listing Brokerage upon the exercising of the said option or any future option, a further commission of

..... of the total rent for the term of such sub-lease extension or renewal. It is understood and agreed that the said further commission is to be paid on the earlier of the date of execution of the extension or renewal or the date the extension or renewal commences. If a sub-tenant to whom the Listing Brokerage rented or sub-leased the Premises effects an offer to purchase the property during the tenancy period or any renewal of the tenancy agreement, the Sub-Landlord agrees to pay the Listing Brokerage a commission of % of the sale price of the property or

..... for the purchase of the property. Any deposit in respect of any agreement where the transaction has been completed shall first be applied to reduce the commission payable. Should such amounts paid to the Listing Brokerage from the deposit or by the Sub-Landlord's solicitor not be sufficient, the Sub-Landlord shall be liable to pay to the Listing Brokerage on demand, any deficiency in commission and taxes owing on such commission.

In the event the sub-tenant fails to complete the sub-lease and the deposit or any part thereof becomes forfeited, awarded, directed or released to the Sub-Landlord, the Sub-Landlord then authorizes the Listing Brokerage to retain as commission for services rendered, fifty (50%) per cent of the amount of the said deposit forfeited, awarded, directed or released to the Sub-Landlord (but not to exceed the commission payable had a sub-lease been consummated) and to pay the balance of the deposit to the Sub-Landlord.

All amounts set out as commission are to be paid plus applicable taxes on such commission.

- 3. REPRESENTATION:** The Sub-Landlord acknowledges that the Listing Brokerage has provided the Sub-Landlord with written information explaining agency relationships, including information on Sub-Landlord Representation, Sub-agency, Sub-Tenant Representation, Multiple Representation and Self-Represented Party assistance. The Sub-Landlord understands that unless the Sub-Landlord is otherwise informed, the co-operating brokerage is representing the interests of the sub-tenant in the transaction. The Sub-Landlord further acknowledges that the Listing Brokerage may be listing other properties that may be similar to the Sub-Landlord's Premises and the Sub-Landlord hereby consents to the Listing Brokerage listing other properties that may be similar to the Sub-Landlord's Premises without claim by the Sub-Landlord of conflict of interest. The Sub-Landlord hereby appoints the Listing Brokerage as the Sub-Landlord's agent for the purpose of giving and receiving notices pursuant to any offer or agreement to sub-lease the Premises. Unless otherwise agreed in writing between Sub-Landlord and Listing Brokerage, any commission payable to any other brokerage shall be paid out of the commission the Sub-Landlord pays the Listing Brokerage, said commission to be disbursed in accordance with the Commission Trust Agreement.

MULTIPLE REPRESENTATION: The Sub-Landlord hereby acknowledges that the Listing Brokerage may be entering into sub-tenant representation agreements with sub-tenants who may be interested in leasing the Sub-Landlord's Premises. In the event that the Listing Brokerage has entered into or enters into a sub-tenant representation agreement with a prospective sub-tenant for the Sub-Landlord's Premises, the Listing Brokerage will require the Sub-Landlord's written consent to represent both the Sub-Landlord and the sub-tenant for the transaction.

The Sub-Landlord understands and acknowledges that the Listing Brokerage must be impartial when representing both the Sub-Landlord and the sub-tenant and equally protect the interests of the Sub-Landlord and sub-tenant. The Sub-Landlord understands and acknowledges that when representing both the Sub-Landlord and the sub-tenant, the Listing Brokerage shall have a duty of full disclosure to both the Sub-Landlord and the sub-tenant, including a requirement to disclose all factual information about the Premises known to the Listing Brokerage.

However, the Sub-Landlord further understands and acknowledges that the Listing Brokerage shall not disclose:

- that the Sub-Landlord may or will accept less than the listed rent, unless otherwise instructed in writing by the Sub-Landlord;
- that the sub-tenant may or will pay more than the offered rent, unless otherwise instructed in writing by the sub-tenant;
- the motivation of or personal information about the Sub-Landlord or sub-tenant, unless otherwise instructed in writing by the party to which the information applies or unless failure to disclose would constitute fraudulent, unlawful or unethical practice;
- the rent the sub-tenant should offer or the rent the Sub-Landlord should accept;
- the Listing Brokerage shall not disclose to the sub-tenant the terms of any other offer; and
- the Listing Brokerage shall not disclose to the Sub-Landlord the terms of any other offer by the sub-tenant.

However, it is understood that factual market information about comparable properties and information known to the Listing Brokerage concerning potential uses for the Premises will be disclosed to both Sub-Landlord and sub-tenant to assist them to come to their own conclusions.

The Brokerage shall not be appointed or authorized to be agent for either the Sub-Landlord or the sub-tenant for the purpose of giving and receiving notices where the Brokerage represents both the Sub-Landlord and the sub-tenant (multiple representation) or where the sub-tenant or the sub-landlord is a self-represented party.

MULTIPLE REPRESENTATION AND DESIGNATED REPRESENTATION: The Sub-Landlord understands and acknowledges where both the Sub-Landlord and sub-tenant are represented by a designated representative of the Listing Brokerage, multiple representation will not result, unless that designated representative represents more than one client in the same trade, and will require consent in writing for such multiple representation. In the event of multiple representation and designated representation, the Brokerage duty of disclosure to both the sub-landlord and the sub-tenant client is as more particularly set out in the agreement with the respective sub-landlord or sub-tenant.

- 4. FINDERS FEES:** The Sub-Landlord acknowledges that the Brokerage may be receiving a finder's fee, reward and/or referral incentive, and the Sub-Landlord consents to any such benefit being received and retained by the Brokerage in addition to the Commission as described above.
- 5. REFERRAL OF ENQUIRIES:** The Sub-Landlord agrees that during the Listing Period, the Sub-Landlord shall advise the Listing Brokerage immediately of all enquiries from any source whatsoever, and all offers to sub-lease submitted to the Sub-Landlord shall be immediately submitted to the Listing Brokerage by the Sub-Landlord before the Sub-Landlord accepts or rejects the same. If any enquiry during the Listing Period results in the Sub-Landlord accepting a valid offer to sub-lease during the Listing Period or within the Holdover Period after the expiration of the Listing Period described above, the Sub-Landlord agrees to pay the Listing Brokerage the amount of commission set out above, payable within five (5) days following the Listing Brokerage's written demand therefor.

INITIALS OF LISTING BROKERAGE: 

INITIALS OF SUB-LANDLORD(S): 



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- 6. MARKETING:** The Sub-Landlord agrees to allow the Listing Brokerage to show and permit prospective sub-tenants to fully inspect the Premises during reasonable hours and the Sub-Landlord gives the Listing Brokerage the sole and exclusive right to place "For Sub-Lease" and "Sub-Leased" sign(s) upon the Premises. The Sub-Landlord consents to the Listing Brokerage including information in advertising that may identify the Premises. The Sub-Landlord further agrees that the Listing Brokerage shall have sole and exclusive authority to make all advertising decisions relating to the marketing of the Premises for sub-lease during the Listing Period. The Sub-Landlord agrees that the Listing Brokerage will not be held liable in any manner whatsoever for any acts or omissions with respect to advertising by the Listing Brokerage or any other party, other than by the Listing Brokerage's gross negligence or wilful act.
- 7. WARRANTY:** The Sub-Landlord represents and warrants that the Sub-Landlord has the exclusive authority and power to execute this Authority to offer the Premises for sub-lease and that the Sub-Landlord has informed the Listing Brokerage of any third party interests or claims on the Premises such as rights of first refusal, options, easements, mortgages, encumbrances or otherwise concerning the Premises, which may affect the sub-leasing of the Premises.
- 8. INDEMNIFICATION AND INSURANCE:** The Sub-Landlord will not hold the Listing Brokerage and representatives of the Brokerage responsible for any loss or damage to the Premises or contents occurring during the term of this Agreement caused by the Listing Brokerage or anyone else by any means, including theft, fire or vandalism, other than by the Listing Brokerage's gross negligence or wilful act. The Sub-Landlord agrees to indemnify and save harmless the Listing Brokerage and representatives of the Brokerage and any co-operating brokerage from any liability, claim, loss, cost, damage or injury, including but not limited to loss of the commission payable under this Agreement, caused or contributed to by the breach of any warranty or representation made by the Sub-Landlord in this Agreement or the accompanying data form. The Sub-Landlord agrees to indemnify and save harmless the Listing Brokerage and representatives of the Brokerage and any co-operating brokerage from any liability, claim, loss, cost, damage or injury as a result of the Premises being affected by any contaminants or environmental problems. The Sub-Landlord warrants the Premises are insured, including personal liability insurance against any claims or lawsuits resulting from bodily injury or property damage to others caused in any way on or at the Premises and the Sub-Landlord indemnifies the Brokerage and all of its employees, representatives, salespersons and brokers (Listing Brokerage) and any co-operating brokerage and all of its employees, representatives, salespersons and brokers (co-operating brokerage) for and against any claims against the Listing Brokerage and representatives of the Brokerage or co-operating brokerage made by anyone who attends or visits the Premises.
- 9. FAMILY LAW ACT:** The Sub-Landlord hereby warrants that spousal consent is not necessary under the provisions of the Family Law Act, R.S.O. 1990, unless the spouse of the Sub-Landlord has executed the consent hereinafter provided.
- 10. VERIFICATION OF INFORMATION:** The Sub-Landlord authorizes the Listing Brokerage and representatives of the Brokerage to obtain any information from any regulatory authorities, governments, mortgagees or others affecting the Premises and/or property and the Sub-Landlord agrees to execute and deliver such further authorizations in this regard as may be reasonably required. The Sub-Landlord hereby appoints the Listing Brokerage or the Listing Brokerage's authorized representative as the Sub-Landlord's attorney to execute such documentation as may be necessary to effect obtaining any information as aforesaid. The Sub-Landlord hereby authorizes, instructs and directs the above noted regulatory authorities, governments, mortgagees or others to release any and all information to the Listing Brokerage.
- 11. USE AND DISTRIBUTION OF INFORMATION:** The Sub-Landlord consents to the collection, use and disclosure of personal information by the Brokerage for the purpose of listing and marketing the Premises including, but not limited to: listing and advertising the Premises using any medium including the Internet; disclosing Premises information to prospective sub-tenants, brokerages, salespersons and others who may assist in the sub-leasing of the Premises; such other use of the Sub-Landlord's personal information as is consistent with listing and marketing of the Premises. The Sub-Landlord consents, if this is an MLS® Listing, to placement of the listing information and sub-leasing information by the Brokerage into the database(s) of the MLS® System of the appropriate Board, and to the posting of any documents and other information (including, without limitation, photographs, images, graphics, audio and video recordings, virtual tours, drawings, floor plans, architectural designs, artistic renderings, surveys and listing descriptions) provided by or on behalf of the Sub-Landlord into the database(s) of the MLS® System of the appropriate Board. The Sub-Landlord hereby indemnifies and saves harmless the Brokerage and/or any of its employees, servants, brokers or sales representatives from any and all claims, liabilities, suits, actions, losses, costs and legal fees caused by, or arising out of, or resulting from the posting of any documents or other information (including, without limitation, photographs, images, graphics, audio and video recordings, virtual tours, drawings, floor plans, architectural designs, artistic renderings, surveys and listing descriptions) as aforesaid. The Sub-Landlord acknowledges that the database, within the board's MLS® System is the property of the real estate board(s) and can be licensed, resold, or otherwise dealt with by the board(s). The Sub-Landlord further acknowledges that the real estate board(s) may: during the term of the listing and thereafter, distribute the information in the database, within the board's MLS® System to any persons authorized to use such service which may include other brokerages, government departments, appraisers, municipal organizations and others; market the Premises, at its option, in any medium, including electronic media; during the term of the listing and thereafter, compile, retain and publish any statistics including historical data within the board's MLS® System and retain, reproduce and display photographs, images, graphics, audio and video recordings, virtual tours, drawings, floor plans, architectural designs, artistic renderings, surveys and listing descriptions which may be used by board members to conduct comparative analyses; and make such other use of the information as the Brokerage and/or real estate board(s) deem appropriate, in connection with the listing, marketing, leasing and sub-leasing of real estate during the term of the listing and thereafter. The Sub-Landlord acknowledges that the information, personal or otherwise ("information"), provided to the real estate board or association may be stored on databases located outside of Canada, in which case the information would be subject to the laws of the jurisdiction in which the information is located.

In the event that this Agreement expires or is cancelled or otherwise terminated and the Premises is not sub-leased, the Sub-Landlord, by initialling:

consent to allow other real estate board members to contact the Sub-Landlord after expiration or other termination of this Agreement to discuss listing or otherwise marketing the Premises.

☐ Does

☐ Does Not

- 12. SUCCESSORS AND ASSIGNS:** The heirs, executors, administrators, successors and assigns of the undersigned are bound by the terms of this Agreement.
- 13. CONFLICT OR DISCREPANCY:** If there is any conflict or discrepancy between any provision added to this Agreement (including any Schedule attached hereto) and any provision in the standard pre-set portion hereof, the added provision shall supersede the standard pre-set provision to the extent of such conflict or discrepancy. This Agreement, including any Schedule attached hereto, shall constitute the entire Authority from the Sub-Landlord to the Brokerage. There is no representation, warranty, collateral agreement or condition which affects this Agreement other than as expressed herein.
- 14. ELECTRONIC COMMUNICATION:** This Agreement and any agreements, notices or other communications contemplated thereby may be transmitted by means of electronic systems, in which case signatures shall be deemed to be original. The transmission of this Agreement by the Sub-Landlord by electronic means shall be deemed to confirm the Sub-Landlord has retained a true copy of the Agreement.
- 15. ELECTRONIC SIGNATURES:** If this Agreement has been signed with an electronic signature the parties hereto consent and agree to the use of such electronic signature with respect to this Agreement pursuant to the *Electronic Commerce Act, 2000*, S.O. 2000, c17 as amended from time to time.

INITIALS OF LISTING BROKERAGE:

INITIALS OF SUB-LANDLORD(S):



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THE LISTING BROKERAGE AND THE DESIGNATED REPRESENTATIVE OF THE BROKERAGE AGREE TO MARKET THE PREMISES ON BEHALF OF THE SUB-LANDLORD AND THE DESIGNATED REPRESENTATIVE OF THE BROKERAGE SHALL REPRESENT THE SUB-LANDLORD IN AN ENDEAVOUR TO OBTAIN A VALID OFFER TO SUB-LEASE THE PREMISES ON THE TERMS SET OUT IN THIS AGREEMENT OR ON SUCH OTHER TERMS SATISFACTORY TO THE SUB-LANDLORD.

.....
(Authorized to bind the Listing Brokerage) (Date) (Name of Person Signing)

THIS AGREEMENT HAS BEEN READ AND FULLY UNDERSTOOD BY ME, I ACCEPT THE TERMS OF THIS AGREEMENT AND I ACKNOWLEDGE ON THIS DATE I HAVE SIGNED UNDER SEAL. Any representations contained herein or as shown on the accompanying data form respecting the Premises are true to the best of my knowledge, information and belief.

SIGNED, SEALED AND DELIVERED I have hereunto set my hand and seal:

.....
(Name of Sub-Landlord)

.....
(Signature of Sub-Landlord/Authorized Signing Officer) (Seal) (Date) (Tel. No.)

.....
(Signature of Sub-Landlord/Authorized Signing Officer) (Seal) (Date) (Tel. No.)

SPOUSAL CONSENT: The undersigned spouse of the Sub-Landlord hereby consents to the listing of the Premises/property herein pursuant to the provisions of the Family Law Act, R.S.O. 1990 and hereby agrees to execute all necessary or incidental documents to further any transaction provided for herein.

.....
(Spouse) (Seal) (Date) (Tel. No.)

DECLARATION OF INSURANCE

The Salesperson/Broker/Broker of Record
hereby declares that he/she is insured as required by TRESA. (Name of Salesperson/Broker/Broker of Record)

.....
(Signature(s) of Salesperson/Broker/Broker of Record)

ACKNOWLEDGEMENT

The Sub-Landlord(s) hereby acknowledge that the Sub-Landlord(s) fully understand the terms of this Agreement and have received a copy of this Agreement on the day of, 20

.....
(Signature of Sub-Landlord) (Date)

.....
(Signature of Sub-Landlord) (Date)

Schedule A

Listing Agreement - Commercial

Landlord Designated Representation Agreement

Authority to Offer for Sub-Lease

This Schedule is attached to and forms part of the Listing Agreement - Commercial Landlord Designated Representation Agreement, Authority to Offer for Sub-Lease (Agreement) between:

BROKERAGE:.....,and

SUB-LANDLORD:.....

for the sub-lease of

This Schedule to the Agreement, *inter alia*, sets out the details of the provision of services by the Brokerage and the provision of services, confidentiality and representation by the Designated Representative of the Brokerage, and subject to the terms of Clause 13 in the Agreement (Conflict or Discrepancy), is in addition to provision of services, confidentiality and representation set out in the Agreement.

This form must be initialed by all parties to the Agreement.

INITIALS OF LISTING BROKERAGE:

INITIALS OF SUB-LANDLORD(S):



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